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THE YALE POLITICAL MONTHLY

An Undergraduate Publication

"We do not need a ban on cloning; we need a moratorium of perhaps three years' duration, so that public emotion on this issue dies down and misconceptions can be dispelled."

Breaking Down Cloning Myths

by

Chris Mooney

"Government officials must never again be allowed to abuse their power the way that Nixon did. We must have an Independent Counsel."

The Independent Counsel After Nixon

by

Josh Chafetz

"The number of Black males that have been dragged through the criminal-justice-system is alarming."

Arresting Black Males

by

Jane Han

VOLUME 19, NUMBER 3 ~ APRIL 1998

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Chris Mooney

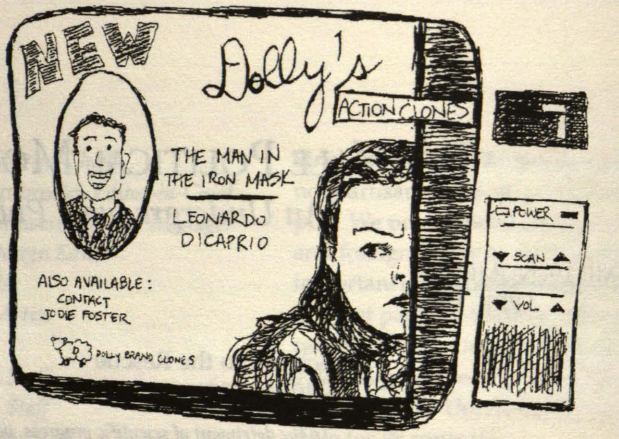
To the detriment of scientific progress, policymakers are drafting cloning legislation based on myths instead of on facts.

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WHY SETTLE FOR SIMPLE ACTION FIGURES WHEN YOU CAN HAVE A CLONE OF THE REAL THING??

Science to the Rescue

How Empirical Knowledge Transforms the Cloning Issue

Chris Mooney

Near the conclusion of his recent State of the Union Address, President Clinton praised many of the scientific advances of this century, and spoke of a "21st Century Research Fund for pathbreaking scientific inquiry." But, he added, "as important as rapid scientific progress is, science must continue to serve humanity, never the other way around."[1]

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Such dichotomizing sounds good, but ignores a troublesome third possibility: that humans might misunderstand, and therefore *choose* to hobble the very science that might otherwise have benefited them. This is the real danger in the cloning issue.[2] The President's politically palatable decree that "we must ratify the ethical consensus of the scientific and religious communities and ban the cloning of human beings"[3] refers to, but radically oversimplifies, the scientifically dubious conclusions of the National Bioethics Advisory Commission (NBAC) Report on Cloning. But whether or not such an "ethical consensus" truly exists, it *ought* not to.

The harms projected to accrue from the cloning of humans are all speculative and easily avoided through proper, provident legislation. Potential benefits, meanwhile, are legion: new knowledge, medical technologies, reproductive freedoms, and in the end, the possibility of a truer understanding of human life itself. Those who harbor knee-jerk reactions to cloning fail to see these potentialities, but our nation must be ruled by reflection, not reflex. As Oxford's Charles Simionyi Professor of Public Understanding of Science Richard Dawkins has written, "we need less emotion and more thought."[4]

Discrediting Scare-Tactics

In his new book *Who's Afraid of Human Cloning?* (Rowman & Littlefield 1998), Gregory E. Pence writes, "Good soundbites and memorable phrases get a bioethicist quoted, whether it's a local paper or a national one. If you want to make a big splash, you have to say that human cloning is as dangerous as North Korea launching a nuclear attack on Canada."[5] Much discussion of cloning has taken the form of bluster rather than argument, and as a result, certain prominent absurdities need discrediting:

(1) To compare human cloning either to the Holocaust or to Hiroshima and Nagasaki is to draw a *very* weak analogy. Some argue that madmen will clone themselves and try to take over the world, or that cloning, which like the atom bomb has been made possible through scientific advance, also threatens humanity in some massively destructive way. Yet the potential harms to human life and happiness likely to result from cloning fail to compare to those caused by the Holocaust or the use of the atomic bomb. Yes, conceivably a madman like Hitler could be cloned a thousand times, just as our nuclear arsenal could be fired off at any time. But if the missiles were fired, we would all die. If the madman was cloned, nine months later there would be a thousand innocuous new babies in the world, perhaps a handful of whom *might* become madmen *twenty to thirty years later*, zero of whom would achieve positions of political influence. Hitler was by and large a product of his time, of nurture and not nature, as even the title of *Mein Kampf* demonstrates.

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(2) Religious objections to cloning carry no weight, because religious doctrines, no matter how widely held, have no readily discernible basis in any reality we can all agree upon. Religions disagree amongst themselves as well, which is why we maintain a separation of church and state in this country. The United States is a secular nation. Our constitution never mentions "God," and its prominent discussions of "religion" (i.e., the First Amendment) stress religious *freedom* — an admirable principle, but never to be confounded with religious *privilege*. Religions must not be allowed to persist in harmful practices: that would be privilege. Religions must not be treated with kid gloves, for the same reason. Why, then, did the NBAC devote an entire day to religious testimony on cloning? This is not the way to maintain a robust distinction between church and state. Why would a theologian have any scientific or ethical expertise? Religious beliefs should be treated as opinions, just like all other opinions; they merit no special privileges.[6]

(3) To claim that cloning is "unnatural" is to make a meaningless statement, not a pejorative one. If human beings are "natural" — and as far as science can determine we are members of the animal kingdom — how can we possibly do or make anything "unnatural"? Or are books, clothes, cars, and condoms all unnatural? We are free to say so, but only if we also agree that beaver dams and birds' nests are unnatural. Either everything done by and to living things is "natural," or "unnatural" — the word choice is arbitrary. But whenever someone calls something "unnatural" hoping to imply that other things are more "natural," this means nothing more than that s/he dislikes the thing in question.

(4) In her recent book *Clone* (William Morrow, 1998), Gina Kolata writes that, "The public views scientists as isolated technocrats who rather high-handedly attempt to argue from positions of authority."[7] But scientists are *not* the bogeyman. Contrary to popular view and *E.T.*, scientists have consciences too. If they have made mistakes, factual or ethical, they have also always been the first to correct them. Indeed, the very essence of the scientific method, which stresses the exercise of free inquiry and considers nothing sacred, is to correct mistakes.

But what about nuclear weapons? Einstein advised that this country build a nuclear weapon, and this was probably a good decision, given the well-founded fear that Germany might develop one. Then nuclear weapons were abused and dangerously spread, and Einstein spoke out in favor of nuclear disarmament. Today, especially in America, most scientists favor nuclear disarmament. The thousands of warheads still threatening humanity are not their fault, but the fault of contentious rulers and politicians who have not managed to adjust from the politics of nationalism to globalism.

(5) The Myths of Prometheus and Icarus, novels such as *Frankenstein* and *Brave New World*, and films such as *The Boys from Brazil* and *Jurassic Park* are works of fiction: they were not clairvoy-

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antly created so as to bear upon the current cloning crisis. In the March 1972 issue of *The New York Times Magazine*, Willard Gaylin, one of the founders of the Hastings Center, published a sensationalist article entitled: "The Frankenstein Myth Becomes a Reality: We Have the Awful Knowledge to Make Exact Copies of Human Beings."[8] But even twenty-six years later, we still don't have the "awful knowledge," and in 1972 Gaylin certainly could not have perceived an actual threat. Honesty, however, was not his aim. Gaylin sought to attract attention for ethicists like himself, and science fiction served his purpose admirably.

Thus today's Ethics movement owes its origin in part to groundless fire-starting about cloning, and many Hastings disciples continue to employ inflationary tactics (including literary allusion). This is not in principle to attack ethicists. Generally speaking, the more people we have thinking full-time about how we ought to behave, the better off we are. However, Ethics has become an industry, which means that we must treat alarmist propaganda with skepticism.

(6) The "slippery slope" argument is very much a scare-tactic. Many bioethicists argue that small concessions — such as permitting scientific research on cloning — will promptly accumulate until we find ourselves in Huxley's *Brave New World*. But this argument ignores the time honored fact of conservative reactions in this country (from the Whig victory over Jacksonian Democracy in 1840 to the Reagan-Bush era). It fails to recognize that our entire government is designed so as to resist slippery slopes: the pessimistic conservatism of James Madison and others, as documented in the *Federalist Papers*, resulted in the formation of a phlegmatic government founded on checks and balances, in which it is difficult to effect immediate, rash change. The slippery slope argument finally questions whether or not our constitution is sufficiently conservative, but we should trust the constitution over the huffings of ethicists.

Scientific Fact

Once myth has been set aside, any rational public policy on cloning must have its basis in empirical, and more specifically biological understanding. Knowing what a clone *is*, biologically, matters as much to the cloning issue as knowing what an embryo *is* to the abortion issue, or knowing what a greenhouse gas *is* to environmental issues. Often empirical knowledge can be shocking or disheartening, but even if cloning threatens to change our views on life itself, we must not ban it merely for that reason. We must never (like the Catholic Church has so infamously done) legislate obscurantism, solely based upon a fear to know, the most irrational fear of all. Scientific illiteracy has played an enormous role in the superstitious reaction to cloning, and only scientific literacy can help us to achieve a more sensible outlook.

The crucial biological fact to consider is that cloning, literal cloning, oc-

curs in un-assisted reproduction, and therefore can hardly be so earth-shattering as some would have us believe. Every identical twin is a clone of his or her twin, for the two share identical genetic information. However, identical twins do not remain identical for very long. Two identical twins inevitably have different womb and life experiences, and thus become quite different people. Nurture plays a *very significant* — though no one knows exactly *how* significant — role in the formation of human identity. (This means that a superclone, a clone identical in every possible way to its clonee, the *doppleganger* myth has taught us to fear, will always remain a scientific impossibility.) And if nurture matters so much, if two identical twins end up quite distinct from one another, how different would the clone of someone who grew up in Los Angeles in the 70s be after growing up in New York in the 21st century? A clone would be more similar to her clonee than to any other person in the world — provided the clonee does not have an identical twin — but this fact should not be over-emphasized any more than under-emphasized. A clone would in many ways be very different from her clonee, too. We should also bear in mind that "similar" — and "different" — are relative terms. Human beings and chimpanzees share 99.6 percent of their active genes.[9] From the point of view of a flatworm or alien, chimpanzee and humans are identical.

Finally, it is often claimed that a clone would lack a "soul." There exists no legitimate scientific basis for believing that anyone has a "soul" in any metaphysical sense: Occam's razor slices out the soul as it does god and the ether. However, if by "soul" we mean consciousness, then certainly identical twins are conscious, and thus an artificially produced clone would by its genetic nature be no less "ensouled." As the Princeton biologist Lee Silver writes in his excellent new book *Remaking Eden* (Avon, 1997): "Cloned children will be full-fledged human beings, indistinguishable in biological terms from all other members of the species. Thus, the notion of a soulless clone has no basis in reality."[10] It is not only illogical but dangerous to argue otherwise. Uninformed proclamations of soulless-ness have been used to justify horrible cruelty in the past: Descartes thought animals lacked souls, and so tortured them. If we fear harm from cloning, the first thing to do is discredit the belief that a clone would not have a "soul."

Cons (Alleged and Actual)

It would be unethical to clone a human before proper procedures have been developed to ensure the safety of the clone and the woman who carries it. But there is no reason to think human cloning research, or human cloning itself once perfected as a procedure, would be abnormally dangerous in any way. Certainly no harm could result from cloning research. The NBAC's statement that "the creation of embryos for research purposes alone raises serious ethical questions,"[11] is essentially Pro-Life, and

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ignores the fact that, although alive and genetically human, *embryos are not human beings*. Embryos lack human consciousness, and as the abortion issue has taught us, only living things that have human consciousness have human rights.[12] Lee Silver remarks, "The specialness of humanity is found only between our ears; if you go looking for it elsewhere, you'll be disappointed."[13] Hence, if embryo research would be required to perfect human cloning, this is harmless; and if some embryos would inevitably be lost in a human cloning procedure, still there would be no harm. Millions of sperm are lost in each male ejaculation, eggs are lost every month in women, and these gametes are "alive" in the same strictly cellular sense that embryos are alive, though they contain half as much genetic material.

The NBAC report goes on with a string of scientific boners: "It is important to recognize that the technique that produced Dolly the sheep was successful in only 1 of 277 attempts. If attempted in humans, it would pose the risk of hormonal manipulation in the egg donor; multiple miscarriages in the birth mother; and possibly severe developmental abnormalities in any resulting child."[14] The mention here of "the risk of hormonal manipulation in the egg donor" is nothing short of dishonest. In vitro fertilization (IVF) requires egg donors as well, and was first performed in 1978. If we have already accepted the risks of hormonal manipulation with regard to other reproductive technologies, such risks should not be tacked on as arguments against cloning. The NBAC's raising this cobwebed issue amounts to yet another scare-tactic.

"Successful in only 1 of 277 attempts" is also misleading. Silver explains that "this is a misunderstanding of what the number 277 actually represented... what it stood for was the number of fusions that were initially obtained between donor cells and unfertilized eggs. Only 29 of these fused cells actually became embryos, and these 29 embryos were introduced into 13 ewes, of which one became pregnant and gave birth to Dolly."[15] Let's compute what real *harm* would result if the statistics for the first human cloning were identical to these statistics from the cloning of Dolly. First, 277 - 29 = 248 fused cells do not even become embryos: no harm there. Second, 29 - 1 = 28 embryos do not implant in 13 uteruses[16]: but embryos are not human beings, so there is again no harm if they are lost. What of "multiple miscarriages?" It seems quite a stretch to label the loss of an embryo which never implants in a mother's uterus a miscarriage, but this is just a semantic question. If lost embryos that do no implant have "miscarried," we must recognize that there are different degrees of miscarriages. These are tiny, days-old embryos failing to implant and being "miscarried;" and this kind of "miscarriage" occurs quite commonly in IVF and ordinary sexual reproduction. Indeed, even in the second month of pregnancy women hardly notice their miscarriages. In a human cloning a late-term miscarriage might occur, just as in an IVF preg-

nancy or an ordinary pregnancy. But any embryo that implants in the woman's uterus will be just as likely to miscarry as any other implanted embryo, clone or not.

Finally, "severe developmental abnormalities" are no more likely in a cloning than in a normal pregnancy. In fact, "birth defects in cloned children could occur less frequently than birth defects in naturally conceived children."[17] Cloning avoids the risk of genetic diseases caused by errors in meiotic (reduction division, in which the chromosome number is halved) gamete production, because it proceeds without the formation of new gametes. A clone can never have Down's Syndrome, or a host of other genetic diseases caused by meiotic errors.

Thus the NBAC's list of physical harms likely to accrue from human cloning is egregiously inaccurate, as can be shown with fairly simple biology. How can Clinton speak of "the ethical consensus of the religious and scientific communities," when this apparent consensus is based upon bogus science? There *are* things we must still learn before we can pronounce human cloning safe, such as whether clones age normally or more rapidly.[18] But we can obtain sufficient knowledge on these questions without the slightest harm to humans. Indeed, so long as we don't ban cloning in this country — thereby challenging peripheral groups to attempt to clone without proper technology or funding — we can ensure that any cloning be a safe cloning.

After the "277 attempts" furor has died down, some worry that human clones would have difficult lives. It is a legitimate concern, and should be addressed. Clearly clones would have to be granted full citizenship and rights. If something is human, it should be treated so. But if a clone is properly cared for and loved, where is the harm? Some say it would be hard to grow up knowing in advance how one will look, whether one will go bald, etc. But we can all see this shadow of the future to some degree, and it has only a trivial impact upon what we make of ourselves. A more serious problem is the anticipation that clones might be mistreated. We do not always tolerate difference, or rather, newness. At the very least, as indicated by the irrational reaction to the birth of Dolly, the world must become more prepared mentally for cloning advances before human cloning is performed, if only for the sake of the clone him- or herself. These issues would seem to warrant precisely what the bioethicist Arthur L. Caplan has recently called for: "a moratorium of a few years on any effort to create a human being by means of cloning."[19]

The question of a clone's identity has already been dealt with above in the discussion of identical twins. It only remains to say that there is nothing earth-shattering about the fact that a clone might have only one parent. A woman today can become a single mother any time she wants. For a man to become a single father is more difficult, but if he can find an egg donor, he has the (albeit costly) option of surrogacy.

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Pros

Few have lingered upon the "pros" to cloning-related research, or to human cloning itself, yet these should hardly be ignored. Cloning research could allow us to grow organs genetically selected so that certain bodies will accept them — donor problems could be solved. Also, massively productive domestic animals could be cloned: for instance, cows that provide a great deal of milk. Biodiversity could also be preserved: endangered species could be cloned and thus kept alive. Finally, we must never forget about the advances in scientific knowledge about genetics, and in our understanding of the nature of life, existence, and identity, promised by cloning.

The cloning of humans, too, promises many benefits. Cloning offers revolutionary new reproductive freedoms — new rights, new ways for people to achieve happiness — and this step toward further equality is an enormous boon we should not sacrifice to ignorance. As of now, human reproduction is strongly biased in favor of heterosexuals. But if we could clone, homosexual couples might not have to adopt; this would make them reproductively viable and quash reproductively-based arguments against same-sex marriage. Reproduction is also currently biased in favor of couples; if we could clone, single individuals might be able to reproduce as well. Accusations of pride or egotism are no valid criticism of these procedures: all reproduction, sexual or asexual, involves egotism. All planned reproduction also involves love. And though some of these possibilities might sound shocking, that does not make them wrong. The only wrong is harm to human beings, and accordingly that is all that would have to be policed.

A Moratorium On Hysteria

The nation experienced a shock followed by an ethicizing frenzy after the birth of Dolly, resulting in the now infamous report by the NBAC. The Commission, which has already been shown untrustworthy on several counts, recommends a legal ban on human cloning, written so as not to impede scientific research and including a sunset clause. This is too extreme. Why should we put ourselves in a position of having to work to overturn a decision against cloning once we have finally come to our senses? We do not need a ban on cloning; we need a moratorium *only on actual human cloning* of perhaps three years' duration, so that public emotion on this issue dies down and misconceptions can be dispelled. Meanwhile, as cloning comes to be thought about more clearly, cloning technologies can be perfected.

We need less emotion and more thought, and a moratorium will provide both public calm and sufficient time for serious discussion. Right now we are not anywhere near reflective equilibrium regarding cloning. When the retired physicist Richard Seed announced in January that he planned to clone a human being, another wave of hysteria rippled across the nation, comparable in

magnitude to that which followed the announcement of the birth of Dolly. Seed's proposal has spawned a disastrous know-nothing bill in the Senate, permanently banning somatic cell nuclear transfer (cloning) and imposing prison sentences of up to ten years for violators. Luckily this bill, which would have hobbled scientific research in many arenas, has been voted down. But in the meantime, many states have been frantically legislating. California has imposed a cloning ban; other states have legislation pending. Yet surely cloning should not be regulated from state to state, especially as state laws might interpolate clauses restricting genetic engineering, embryo research, and banning all forms of cloning rather than just human. There is no reason to impair the development of cloning technology, or other reproductive technologies, though there is good reason temporarily to control the cloning of humans.

The Food and Drug Administration (FDA) has also recently announced that it has the power to control human cloning.[20] Cloning hardly seems to fall within the FDA's jurisdiction, but many Americans want so badly to see cloning banned they don't care who takes care of it, as is evidenced by this statement from Heather Kowalski, spokeswoman for the American Society of Reproductive Medicine: "If the FDA can handle it, that's great."[21] But if cloning bans have failed in Congress, that does not mean that smaller groups, either states or the FDA, get their chance to decide right and wrong for us. The FDA now requires from anyone who wants to clone an application proving that their experiments would not be dangerous. It may get one sooner than it expects.

We must also beware of those who would lump cloning and other reproductive issues together. "When Representative Vernon Ehlers, a Michigan Republican, introduced a bill in the House last year to ban Federal financing for human cloning, he soon found himself hauling around a proposal that banned human embryo research as well," writes Caplan.[22] We cannot allow a vote against cloning to become a vote against abortion, although cloning, embryo research, and abortion are indeed difficult to disassociate. If more Americans could adopt the principle that human beings have human consciousness, not just human DNA, it might no longer be harmful to treat these issues collectively. However, the reaction against cloning and embryo research threatens to bring down abortion with it. The Religious Right is of course prone to lump all reproductive issues together because of its misunderstanding of the word "natural" and its dependence on scripture, but it must not be allowed to do so, or the potential of human knowledge to achieve good will be constricted.

Human cloning must not be banned. The cloning of humans offers too many potential benefits to be placed out of our limits. But, because cloning does raise some new problems, and could be abused, a moratorium needs to be imposed, and these issues not only hotly debated, but studied. Provided we

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become and remain open-minded, in ten years cloning will not seem fundamentally different from any other form of assisted reproduction, and we will be left solely with the benefits of the procedure. If we prove incapable of coming to this reflective equilibrium, we have no right to call ourselves "rational animals" — a designation which thinkers as diverse as Johnathan Swift and Bertrand Russell have seen fit to call into question.

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[1] Complete contents of the address found on the web: http://www.whitehouse.gov/WH/SOU97/index.html

[2] The technical term for cloning is "somatic cell nuclear transer." This article uses "cloning," despite the fact that the term has taken on many bad connotations. In addition, "clone" is used to signify an individual produced by somatic cell nuclear transfer, and "clonee" to signify the individual from whose somatic cell nucleus the clone was produced. There can be no "clone" without a "clonee," or vice-versa.

[3] Again, President Clinton's 1998 State of the Union Address: http://www.whitehouse.gov/WH/SOU97/index.html

[4] "Thinking Clearly About Clones," *Free Inquiry*, Summer 1997. Vol, 17, No. 3.

[5] *Who's Afraid of Human Cloning*, Gregory E. Pence, p. 32. Lanham, Maryland: Rowman and Littlefield, 1998.

[6] Incidentally, the very real possibility of human cloning provides a brand new and devestating attack on traditional Pro-Life arguments, showing that the stance of the Catholic Church, that "life begins at conception," is entirely untenable. The old critique of the Pro-Life position went like this: "life" doesn't begin at conception except in a cellular sense. Cellular life begins at conception, but human life begins much later, with consciousness. This argument works perfectly well, but now that cloning has become a real possibility it may be bolstered. In a cloning, there is no conception, save the conception that occurred whenever the clonee was conceived, thirty years ago or so. Does this mean that clones are never alive? It does for the Catholic Church. But that would be a very dangerous conclusion. Perhaps instead we need to abandon the Pro-Life position?

[7] Kolota, *Clone*, p. 68. William Morrow, 1998.

[8] Kolata, *Clone*, p. 72. William Morrow, 1998.

[9] Statistic found in an essay by Carl Sagan entitled 'The Twentieth Century,' *Billions and Billions* (Random House, 1997).

[10] *Remaking Eden*, Lee Silver. New York: Avon Books, 1997.

[11] National Bioethics Advisory Commission Report on Cloning Human Beings, p. 63. Taken from the web: http://bioethics.gov/bioethics/pubs.html

[12] Consciousness is also the rational criterion for humanness in abortion, and this is why abortion in the third trimester becomes ethically dubious: the fetal brain has developed sufficiently by this time that the fetus may in some sense be conscious. Human vegetables without any hope of cure lack consciousness, and thus lack human rights; and if robots could ever possess consciousness, they would have human rights. Eventually, and hopefully sooner rather than later, we will come to realize that the consciousness criterion is the only way of attributing human rights. (As for embryo research: it's a common-

place. IVF reproduction loses thousands of embryos. It also gives couples children: human beings.)

[13] Silver, *Remaking Eden*.

[14] National Bioethics Advisory Commission Report, p. 64.

[15] Silver, *Remaking Eden*.

[16] This is all hypothetical; surely we wouldn't use 13 different women as Wilmut and Campbell used 13 ewes.

[17] Silver, *Remaking Eden*, p. 104.

[18] All we have to do is see if Dolly ages too rapidly.

[19] "Why The Rush To Ban Cloning?" Arthur L. Caplan, *The New York Times*, Wednesday, January 28, 1998.

[20] See "FDA Stand on Cloning Raises Even More Questions," Sheryl Gay Stolberg, New York Times, January 12, 1998.

[21] Ibid.

[22] Caplan.

James Phillips
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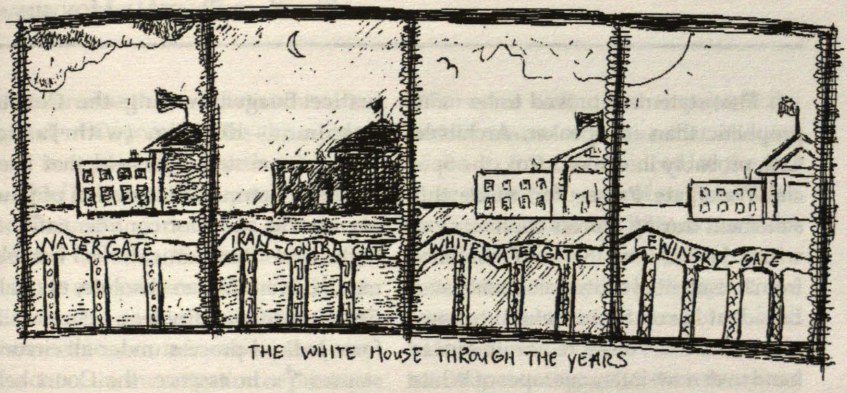
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"Now, eventually, a President can always work his will. You remember when Andrew Jackson wanted to take the deposits from the Bank of the United States and his Secretary of the Treasury wouldn't do it. He fired him and then he appointed a new Secretary of the Treasury and he wouldn't do it, and he fired him. And finally he got a third who would. That's one way of proceeding.[1] "

That statement proved to be more prophetic than its speaker, Archibald Cox, probably imagined. Cox, the Special Watergate Prosecutor, made this statement during a press conference at which he asserted his independence from Presidential control and lambasted President Nixon for his refusal to comply with a court order requiring him to hand over now-infamous tapes of White House conversations. Within a few hours of this press conference, Nixon ordered Attorney General Elliot L. Richardson to fire Cox. Rather than comply, Richardson resigned. Deputy Attorney General William D. Ruckelshaus became the acting Attorney General; when he refused to fire Cox, Nixon dismissed him. This made Solicitor General Robert H. Bork the acting Attorney General. He fired Cox. All of this took place within the span of a few hours — it would later be called the "Saturday Night Massacre." Before Cox's staffers had time to leave their office, the area was sealed off by the FBI, as were the offices of Richardson and Ruckelshaus. Cox's only response was this: "Whether we shall continue to be a government of laws and not of men is now for Congress and ultimately the American people [to decide]."[2]

Cox was vindicated the next year, when the Supreme Court, in *United States v. Nixon*,[3] ordered Nixon to turn the tapes over to Leon Jaworski, Cox's successor as Special Prosecutor. Chief Justice Burger, writing the Court's unanimous decision (with Justice Rehnquist abstaining), held that "neither the doctrine of separation of powers, nor the need for confidentiality of high-level communications, without more, can sustain an absolute, unqualified Presidential privilege of immunity from judicial process under all circumstances."[4] In essence, the Court held that Nixon was not above the law.

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The Independent Counsel is Born

In the legislative backlash that followed Watergate, Congress wanted to ensure that, in the future, Presidents would not be able to dispose of Special Prosecutors quite so easily. In 1978, Congress passed, and President Carter signed into law, the Ethics in Government Act. Title VI of this Act created the Independent Counsel, changing the way that high-ranking government officials were held responsible for their actions. If the Attorney General receives information indicating that a high-ranking official has committed a crime, thirty days are given to determine whether or not the information is both specific and reliable. If determined to be so, then a preliminary investigation begins,[5] during which very limited powers are exercised. (The Attorney General cannot convene a grand jury, offer plea bargains, grant immunity, or subpoena witnesses.). After ninety days, the Attorney General must decide whether or not further investigation is warranted, and if it is, must apply to a federal three-judge panel to appoint

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and determine the jurisdiction of an Independent Counsel.[6] This three-judge panel is appointed every two years by the Chief Justice of the Supreme Court.[7] The Counsel's jurisdiction is expandable and includes "the authority to investigate and prosecute Federal crimes, other than those classified as Class B or C misdemeanors or infractions, that may arise out of the investigation or prosecution of the matter with respect to which the Attorney General's request was made, including perjury, obstruction of justice, destruction of evidence, and intimidation of witnesses."[8] The Independent Counsel has the full authority of a federal prosecutor and full access to Justice Department resources (including the use of the FBI, etc.). In addition, the prosecutor is expected to comply with Justice Department prosecutorial guidelines.[9] Unless convicted in impeachment proceedings, the Independent Counsel can only be removed from office by the Attorney General, and "only for good cause, physical or mental disability . . . or any other condition that substantially impairs the performance of such independent counsel's duties."[10] Finally, the Independent Counsel law must be renewed by Congress every five years or it expires (although, if it is allowed to expire, any ongoing investigations are completed). It comes up for renewal next in the summer of 1999.[11]

Objections

The Independent Counsel system created by the Ethics in Government Act of 1978 seems well suited to prevent the sort of abuse of power that allowed Nixon to fire Cox. Indeed, if the last three and a half years of strife between President Clinton and Whitewater Independent Counsel Kenneth Starr have demonstrated anything, it is that the President has almost no control over the Independent Counsel. In fact, many have begun to argue that the balance has shifted too far in the other direction, that the Independent Counsel now holds almost dictatorial powers, that it has become a standing inquisitor of the President.

The first serious challenge to the Independent Counsel system came in 1988, with the Supreme Court case of *Morrison v. Olson*.[12] In 1986, Independent Counsel Alexia Morrison began an investigation into whether Assistant Attorney General Theodore Olson had lied before Congress. When Morrison subpoenaed Olson to testify before a grand jury, Olson filed suit, claiming that the Ethics in Government Act was unconstitutional for three reasons. First, he claimed that it violated the Appointments Clause of the Constitution, which states that "[The President] shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the Supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law: but the Congress may by Law vest the Appointment of such inferior Officers, as

they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments."[13] Olson argued that the Independent Counsel was a principal officer, and, therefore, had to be appointed by the President and confirmed by the Senate. Chief Justice Rehnquist, writing for the Court, disagreed, arguing that the Independent Counsel was an inferior officer because: 1) he can be removed by a higher executive official (the Attorney General), 2) his duties are narrowly proscribed, and 3) he has limited jurisdiction.[14] Olson argued, that, even if the Independent Counsel were an inferior officer, Congress still did not have the authority to permit anyone other than the President to appoint him. The Court disagreed, finding that there was no "inherent incongruity about a court having the power to appoint prosecutorial officers."[15]

Olson also claimed that the Ethics in Government Act gave the Judicial Branch too much power, at the expense of the Executive. The Court demurred, holding that: 1) as noted above, the Independent Counsel is an inferior officer, and thus, the right to appoint him is not an executive power, and 2) the three-judge panel can only appoint an Independent Counsel upon the request of an executive officer (i.e., the Attorney General).[16] Finally, Olson claimed that the Act violated the constitutional principle of separation of powers, because it usurped the President's executive authority (including prosecution). The Court again disagreed, pointing out that, if as they had already affirmed, neither the Legislative nor the Judicial Branch had overstepped its bounds, then there was no one who could be encroaching upon Executive authority.[17]

Thus, the Independent Counsel survived its first serious challenge, but not without controversy. In a dissenting opinion, Justice Scalia wrote that the Independent Counsel had the potential to turn into a highly politicized office: quoting former Justice Robert Jackson, he wrote, "'Therein is the most dangerous power of the prosecutor: that he will pick people that he thinks he should get, rather than cases that need to be prosecuted.'"[18] Justice Scalia also held that the Act was, in fact, a usurpation of executive authority, arguing that the order of the "Court of Appeals invalidating the present statute must be upheld on fundamental separation-of-powers principles if the following two questions are answered affirmatively: (1) Is the conduct of a criminal prosecution (and of an investigation to decide whether to prosecute) the exercise of purely executive power? (2) Does the statute deprive the President of the United States of exclusive control over the exercise of that power?"[19] Answering both questions in the affirmative, Justice Scalia argued that the Act was both unconstitutional and potentially dangerous.

. . . Sustained!

Originally, Justice Scalia's dissent was widely dismissed as "overheated rhetoric and sour grapes,"[20] especially

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among liberals. However, as Independent Counsels have looked into official after official in the Clinton Administration, including the President himself, Democrats have begun to take another look at the idea of an Independent Counsel. Former Democratic Senator Paul Simon wrote that he now knows that the creation of the Independent Counsel was "a mistake,"[21] even though he himself voted for the Ethics in Government Act in 1978. Republicans, too, are quickly changing their views: as an attorney in the Justice Department during the Reagan administration, Starr himself helped to formulate the challenge to the constitutionality of the Independent Counsel law that later became the basis of Olson's case before the High Court.[22] The media, too, are getting in on the action — in less than two weeks, *New York Times* columnist Anthony Lewis devoted three columns to blasting Starr and the office of the Independent Counsel generally, with his theses unmistakably laid out in the headlines: "Lord High Executioner,"[23] "Abuse of Power,"[24] and "Decency and Liberty."[25] Legal experts are sharply divided on the issue.

Looking past the allegations leveled specifically at Starr (leaking confidential grand jury proceedings to the press, participating in a "vast, right-wing conspiracy,"[26] etc.), it is interesting to examine the arguments that have been made against the concept of an Independent Counsel. These arguments generally fall into two categories: 1) the office of the Independent Counsel is established in such a way that it inevitably leads to politicized persecution and abuse of power, and 2) the Independent Counsel is a standing inquisitor who goes after people, rather than crimes.

The first objection comes out of Justice Scalia's fear that the law allows for the appointment of a "prosecutor antagonistic to the administration, or even to the particular individual who has been selected for this special treatment."[27] The problem, as Anthony Lewis sees it, is that Independent Counsels, who are "free from the ordinary prosecutor's constraints of time and money, . . . [labor] for years to find some sin that would justify their existence."[28]

Often, people who raise this objection refer to the Counsel as having "absolute power," and Presidential aides have recently developed a habit of citing Lord Acton when asked about Kenneth Starr. As they see it, the fact that there is neither a monetary nor time limit on Independent Counsel investigations gives Independent Counsels the ability to wait and watch for any crime that might allow them to "'vindicate what they've been doing for two or three years.'"[29] The fact that Starr is a Republican has also led many to consider the possibility that the office could be abused for political ends, as Justice Scalia had warned. Anthony Lewis warns of this danger when he writes that there is a "special danger of prosecutorial overreaching out of partisanship."[30]

The second objection to the Independent Counsel can also be traced back

to Justice Scalia's dissent in *Morrison*. As noted above, Scalia feared that the Counsel would go after people that he wanted to punish, rather than crimes that he thought should be punished. Some are also beginning to fear that the Independent Counsel has become "a standing inquisition of the President of the United States."[31] Anthony Lewis defines this standing inquisition as "a system of government in which a roving inspector general with unaccountable power oversees the President of the United States . . . [and] whose natural incentive . . . is to go after the President."[32] There is also the danger that, as a prosecutor appointed more to go after a person than to solve a crime, the Independent Counsel will stray "far from the path that justified his appointment,"[33] and do everything in his power to come up with a crime to justify his existence.

Challenging Critics

Although both of these objections to the Independent Counsel are compelling, they are also both flawed. As to the first assertion, that Independent Counsels are prone to abuse their office and pursue partisan goals, history simply has not borne this out. Of the eighteen Independent Counsel investigations since 1978, only seven have led to indictments. Of those seven, three are on-going, and the other four all resulted in convictions.[34] This certainly does not seem like political persecution of innocent members of the other party. Although it is true that there are no time or spending limits on Independent Counsels, it is very telling that the eighteen Counsels combined have only spent about $140 million — a minuscule sum for any government agency.[35] In addition, most of these investigations have been relatively short-lived. As for the argument that the Independent Counsel has "absolute power," this is nothing but empty rhetoric.

First, according to the terms of the Ethics in Government Act, the prosecutor has an obligation to "comply with the written or other established policies of the Department of Justice respecting enforcement of the criminal laws."[36] Failure to do so would almost certainly constitute "good cause" for the Attorney General to remove the Independent Counsel. Even if this safeguard were to fail, the fact remains that the Independent Counsel is only a *prosecutor*. Before he can put anyone in jail, he still needs to obtain a conviction in federal court. In case there is any doubt about this point, it is worth remembering that Starr himself failed to convict two Arkansas bankers in a 1996 case in which Bruce Lindsey, a close friend of the President, had been named as an unindicted co-conspirator.[37] This fact also substantially reduces the Counsel's likelihood of using inappropriate means of investigation: he does not want his case to be thrown out of court because his evidence was gathered illegally. Finally, accusations of being politically motivated are inevitable for an Independent Counsel: if he is of the same party as the target of his investigation, he will be accused of favoritism; if he is of the other party, he will be accused of over-zealousness. The

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Attorney General's power of removal and the need to obtain a conviction in open court are the safeguards that ensure that personal or partisan motives will not spur the Counsel to any illegal actions.

There are similar flaws with the second objection to the Independent Counsel. The argument that the Counsel pursues people and not crimes is flatly false. When a recommendation is made to the court to appoint an Independent Counsel, the Attorney General also recommends the jurisdiction. The court ultimately defines the Counsel's jurisdiction, and it is generally not limited to the investigation of a single person. If the Counsel wants to expand his jurisdiction, he must ask the Attorney General, who petitions the court, which makes the final decision. In fact, Starr, whose critics claim is "going after" President Clinton, has never even tried to indict the president, whereas he has obtained convictions in several other cases. As to the expansion of his investigation to include things that do not seem immediately related to its original purpose, experts in criminal law say that he "has abided by the cardinal rule of prosecutors to follow a criminal trail wherever it leads."[38] Starr also seems to be on solid footing against the claim that some of his tactics, such as asking witnesses to record their conversations, are abusive: Alan M. Dershowitz, a professor at Harvard Law School, points out that these are everyday weapons in the federal prosecutor's arsenal.[39] As government officials are not above the law, these tactics must be appropriate in investigations of them, as well.

The Best Alternative

Opponents of the Independent Counsel law tend to be slow in pointing out alternatives. As giving government officers absolute freedom from the law is a bit too Hobbesian to be seriously considered in American society, it would seem that only one alternative remains: to transfer the job of investigating high-ranking officials back to the Justice Department. To do this would be to concede that we have learned nothing from Watergate. The Justice Department is directly answerable to the President, and it is understandably problematic for an inferior to be charged with investigating her direct superior. Former Senator Paul Simon has proposed a solution: have Congress nominate three candidates for Attorney General. The President then picks one of the three (or asks for a new set of three), and the person chosen serves a ten-year term as Attorney General.[40] There are three problems with this suggestion. First, although Simon claims that it is constitutional, it is hard to see how. The Appointments Clause of the Constitution clearly states that the President must nominate, and the Senate confirm, all principal officers of the federal government.[41] Although what constitutes a "principal officer" has never been fully clarified, it seems clear that the Attorney General would fall into this category. By reversing the process, Simon is on constitutionally shaky grounds, at best. Secondly, what happens if the Attorney General herself is accused of commit-

ting a crime? Under the current system, if she refuses to appoint an Independent Counsel to investigate herself, the President can remove her from office. However, if the Attorney General were to be appointed for a ten-year term, there would be no way of beginning an investigation against her. Finally, what is to prevent the Attorney General from abusing her power in the same way that the Independent Counsel is now accused of doing? Now, the Independent Counsel is held in check by the Attorney General; under Simon's system, the Attorney General would be accountable to no one — how does this solve the problem of abuse of power? Clearly, the only viable solution is to retain the Independent Counsel system.

In fact, the Ethics in Government Act should be left exactly as it is. What should be changed are the rules by which federal prosecutors operate. As Professor Dershowitz writes, "No citizen should be targeted by a sting without a 'sting warrant' based on probable cause. Nor should any citizen be subjected to the abusive tactics used against the President by Kenneth Starr. But that is not the law today. Today, a prosecutor may authorize a sting without probable cause, may wire a conversation and may coerce cooperation."[42] As long as citizens are subjected to that sort of prosecutorial abuse, government officials must be as well. In fact, it is more fitting that it be used against government officials than anyone else: "Public officials who support invasive law enforcement techniques should understand that someday those techniques may be directed against them."[43] These are the laws that must be changed. Once they are, the Independent Counsels will have to abide by them as well. However, the rules must not be special in the case of the rule-makers. Any prosecutorial tactic that is appropriate in going after the most notorious Mafia boss must also be acceptable in going after the President of the United States.

It is imperative that we learn from Watergate. It is imperative that the "Saturday Night Massacre" not be repeated. It is imperative that the responsibility for investigating high-ranking government officials remain independent of those officials' control. In one of his diatribes against the Independent Counsel, Anthony Lewis unintentionally hit on the reason why the office is most necessary: "Crime is contagious. If the government becomes a lawbreaker, it breeds contempt for the law; it invites every man to become a law unto himself;"[44] it invites the worst sort of abuse of power. Government officials must never again be allowed to abuse their power the way that Nixon did. The Ethics in Government Act must be renewed in 1999. We must have an Independent Counsel.

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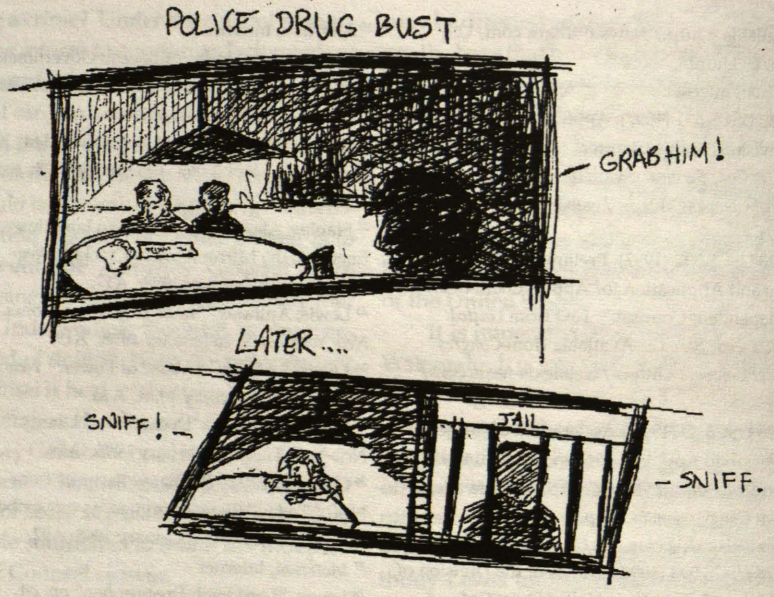
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Over-Policing

Abuse of police discretion

Jane Han

Before the 1930s, police had multiple duties that fell under crime prevention. They walked beats and were present in the communities; they dealt with conditions that created crime like disorder, drunkenness, gambling, and prostitution;[1] and they performed social services like relocating abandoned children or temporarily sheltering the homeless.

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Police officers were given a great amount of discretionary power on a day to day basis. Unfortunately, this left much room for abuse and corruption. In the South, many Black men were arrested for petty infractions like littering and disorderly conduct. As these Black men moved North, the situation was the same and many were sent to prison for small violations or on charges of suspicion.[2]

But, the call for police reform was not over the unfair treatment of Black males. People felt that police discretion had become dangerous because police officers were now puppets of political machines. They would carry out ward services, threaten citizens that ward bosses singled-out, and perform a number of other illegal practices. The public demanded reform to eliminate this corruption. As a consequence, the police were turned into well-trained crime fighting professionals who were no longer responsible for social services or politicians.[3]

The reform model replaced order-maintenance with law-enforcement. Police officers were discouraged from exercising judgment towards crime prevention; their function was to be reactive. They would only intervene if a crime took place. The 911 system developed out of this philosophy and it was believed that placing policemen in cars instead of on beats would be a more powerful and effective deterrent of crime. Performance was narrowly measured by number of arrests, crime rates, and response time. Meanwhile, many new problems created by the reform model were overlooked.[4]

In the 1960s, the concept of a criminal-justice-system further emphasized the law-enforcement function of police who were the front door to the system. Their main focus became arrests, and if a criminal came back on the street, it was the fault of another part of the system comprised of courts, probation, parole, and prison agencies.[5] The only contact police had with members of a neighborhood was during arrests which meant police were only in contact with "lawbreakers." Because police only saw the negative aspects of a neighborhood and were prevented from experiencing other dimensions through regular contact with the people, they started to develop distorted views of the areas they were patrolling, esp. minority neighborhoods.[6]

Though crime-prevention policing before the 1930s left many minorities susceptible to police discretion, the reform model, law-enforcement policing, was counterproductive and had negative effects on minority communities. The emphasis that law-enforcement policing placed on arrests and the deteriorating relationship between community and police through the isolation methods of the 911 system resulted in the over-policing of minorities. As a consequence, a disproportionate number of Black men have been subjected to the criminal-justice-system and have a criminal record.

The FBI *Uniform Crime Reports*, instead of reporting crime statistics on the basis of convictions like many European countries, based them on the number of arrests. However, if one were to compare the number of arrests to the number of convictions, one would see huge discrepancies. Some attribute this to a faulty court system, but a more likely reason is over-policing.

"[A]bout 43 of every 100 individuals arrested for a felony either were not prosecuted or had their cases dismissed outright at the first court appearance. These dismissals had nothing to do with plea bargains; usually there was not sufficient reason to proceed with the case. For example, of the 399,277 arrests for "aggravated assault" reported by the FBI in 1990 (a grossly disproportionate percentage of them involving African-Americans), only 53,861 (13.4%) resulted in felony convictions."[7]

In addition, the charges that Black men

were being arrested for in the 1990s were similar to those charged against them in the early 1900s. Out of an estimated 14,211,900 arrests in the U.S. in 1991, 11,240,500 arrests were for nonindex crimes like forgery (103,700), public drunkenness (881,100), and loitering (93,400). "The largest single category was the all-inclusive 'other.' Arrests classified as 'other' made up 21% of all reported arrests nationally in 1991."[8] "Other" includes misdemeanor offenses that did not fit into *Uniform Crime Report* categories, like feeding alligators, resisting without violence, nonsupport, and impersonating a massage license holder.[9]

Over-policing was also evident in the disproportionate number of Black men involved in drug arrests. A *USA Today* survey revealed that 8.7 million Caucasians had used an illegal drug in the past month compared to 1.6 million African-Americans. Yet, between 1986 and 1991, the number of Whites held in prison on drug charges rose from 16,000 to 30,000 while the number of Blacks held in prison on drug charges rose from 65,000 to 80,000. Moreover, a 1988 Rutgers University study found that although less than "5% of the out-of-state cars on a portion of the New Jersey Turnpike were driven by Blacks... 80% of the arrests for contraband, such as weapons and drugs, involved Blacks with non-New Jersey license plates."[10]

The number of Black males that have been dragged through the criminal-justice-system due to the unchecked discretion of a police officer with the power to arrest is alarming: "[T]he National Center on Institutions and Alternatives found that, on any given day in 1992, 42% of all the 18- to 35-year-old African- American males who lived in the District of Columbia were in jail, in prison, on probation/parole, out on bond, or being sought on arrest warrants."[11] Minorities are more likely to be stopped and questioned by police in their lifetime which begs the question, are they stopped because they are guilty or are they found guilty after they are stopped.[12]

The realities of police racism have been so strong that it disregards class. In a survey of 200 Black men in 1969, 82% of those who had finished eighth grade had been stopped and arrested in their lifetime, 50% of those who had finished high school had been arrested, but 75% of those who had finished one or two years of college had also been stopped and arrested in their lifetime. "In short, college-educated [Black men were] almost as likely to have been arrested as [Black men] with only an eighth-grade education."[13]

Instead of eliminating over-policing, the law-enforcement model exacerbated it. But, the solution is not to revert back to community policing. Both models fail to address the problem of racism among police officers and instead pay too much attention to levels of discretion. No model can completely eliminate discretion. Therefore, discretion needs to be monitored so racist over-policing can be pinpointed.

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